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Product and Services Agreement

This Product and Services Agreement ("Agreement") is made on _____, _____ by and between Meridian Surgical Supplies, LLC, a Wyoming limited liability company ("MSS"), with offices at 235 Singleton Ridge Road, Conway, South Carolina 29526, and _____, _____ ("Client"), with offices at

_____, _____

RECITALS

WHEREAS, MSS develops, manufactures, distributes, and markets wound care products set out at Exhibit A ("Products");

WHEREAS, MSS provides the Products along with direct patient fulfillment services for the Products on behalf of, and as requested by, Client; and

WHEREAS, Client, as a provider, desires to engage MSS to provide such Products and Services (as defined below) on behalf of the Client's patients.

NOW, THEREFORE, for and in consideration of the promises and covenants contained herein and intending to be legally bound, the parties agree as follows:

1. Products and Services. MSS shall provide the Products to Client as described and priced in Exhibit A. MSS shall process, pick, pack, ship, and fulfill orders direct to patients or Client on behalf of, and as requested by, Client ("Services"). Client hereby expressly authorizes MSS to provide the Services directly to patients on its behalf in accordance with this Agreement.

2. Client Responsibilities

a. Client understands and acknowledges that MSS is not a healthcare provider and does not bill or collect any remuneration from any Federal, State, or third-party insurance for such Products and Services provided hereunder. Therefore, Client is solely responsible for performing all medical billing functions, including, but not limited to:

i. Processing, submitting claims, performing or subcontracting collection activities, coordinating benefits, and interacting with patients and responsible parties for all Products supplied by MSS.

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ii. Ensuring the accuracy and completeness of all coding associated with such claims.

iii. Ensuring the medical necessity and appropriateness of the services for which a claim will be submitted.

iv. Keeping records pertaining to patients, billing, and collections as long as required by law.

b. MSS shall have no liability or responsibility whatsoever regarding the accuracy or completeness of coding or determinations regarding medical necessity. MSS shall not be responsible for any failure to meet its obligations under this Agreement related to Client's failure to perform billing responsibilities.

c. Client shall utilize MSS's web-based portal to submit all orders for the Products.

3. MSS Responsibilities

a. Assist the Client with verifying that Client's patients are properly insured for the Products requested.

b. Provide Product literature, forms, and/or samples, including training and support.

c. Process purchase orders and deliver Products in specified quantities.

d. Provide fulfillment services through its own or affiliate distribution companies.

e. Provide the Client with copies of orders, invoices, documentation notes, and shipment tracking numbers.

4. Client Representations and Warranties

a. Client remains solely responsible for all medical claims billing.

b. Client is familiar with billing requirements and agrees to indemnify MSS against losses from negligence in claim submission.

c. Client shall maintain all source documents and a complete list of wound care products supplied.

5. Compensation.Client shall pay the full invoice amount for Products and Services within sixty (60) days after the last day of each month.

a. Invoices not paid on time will incur a 2% APR service charge.

b. MSS may suspend Services for invoices more than 30 days past due.

6. Compliance with Laws. Both parties agree to comply with all applicable laws, regulations, and government interpretations relating to billing, coding, and claims submission.

7. Term. This Agreement shall be for an initial term of one (1) year and shall automatically renew for one (1) year unless either party provides 30 days' written notice before expiration.

8.Termination

a. Immediate Termination: By either party for license suspension, bankruptcy, legal

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noncompliance, or breach.

b. Effect: MSS may process existing orders; Client shall pay for all processed orders per Section 5.

9. Non-Disclosure. All information provided shall be kept confidential and not disclosed without written consent.

10. Confidentiality and HIPAA. MSS agrees to HIPAA compliance as outlined in Exhibit B. All PHI and related information shall remain confidential.

11. Limitation on Liability. MSS's liability is limited to the amount paid by Client for disputed orders, except for gross negligence or willful misconduct.

12. Mutual Indemnification

a. Client indemnifies MSS for damages from breaches or professional practice.

b. MSS indemnifies Client for damages from breaches or Services.

13. Governing Law. This Agreement shall be governed by the laws of the Commonwealth of Pennsylvania.

14. Arbitration. Any disputes will be settled by binding arbitration in Pennsylvania under AAA rules. Arbitration awards are final and enforceable.

15. Force Majeure. Neither party shall be liable for performance delays due to circumstances beyond their control (e.g., natural disasters, terrorism).

16. Assignment. Neither party may assign this Agreement without written consent, except in the event of a merger or acquisition.

17. Amendment and Entire Agreement. This Agreement may only be amended in writing by both parties. It constitutes the entire agreement.

IN WITNESS WHEREOF, the parties have executed this Agreement on the dates indicated below:

MERIDIAN SURGICAL SUPPLIES, LLC	**CLIENT**
Name: Dr John Pienkos	Name: _____
Title: CEO	Title: _____
Date: _____	Date: _____
Signature:	Signature:

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Products and Services Pricing
DME Primary and Secondary Dressings

Product Description	Unit	HCPCS	2025 Fee Schedule	Physician COGS*
Collagen Powder 1g	**1**	A6010	$43.27	$21.00
Collagen Dressing 1" x 1"	**1**	A6021	$29.38	$13.50
Collagen Dressing 2" x 2"	**1**	A6021	$29.38	$16..00
Collagen Dressing 7" x 7"	**1**	A6023	$265.90	$100.00
Collagen Dressing 5" x 10"	**1**	A6023	$265.90	$100.00
Silicone Plus 4" x 4"	**1**	A6196	$10.28	$4.00
Silicone Plus 5" x 5"	**1**	A6196	$10.28	$4.00
Silicone Plus 6" x 10"	**1**	A6197	$22.98	$10.00
Silicone Plus 4" x 8"	**1**	A6197	$22.98	$10.00
Adhesive Island Dressing 2" x 2.8"	**1**	A6219	$1.33	$1.00
Adhesive Island Dressing 3.2" x 4"	**1**	A6219	$1.33	$1.00
Adhesive Island Dressing 3.2" x 6"	**1**	A6219	$1.33	$1.00
Adhesive Island Dressing 4" x 4"	**1**	A6219	$1.33	$1.00
Adhesive Island Dressing 4" x 6"	**1**	A6219	$1.33	$1.00
Adhesive Island Dressing 4" x 8"	**1**	A6219	$1.33	$1.00
Adhesive Island Dressing 4" x 10"	**1**	A6219	$1.33	$1.00
Adhesive Island Dressing 4" x 14"	**1**	A6220	$1.33	$1.00

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(1) The fee schedule is based on associated HCPCS for each listed item. Fees are based on the 2025 CMS published rate. If CMS updates these fees, they shall be adjusted accordingly.